

M/S Super Texcones v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 19 April 2024 · 2024:AHC:68508-DB · WRIT - C No. 11560 of 2024 · **Writ disposed; petitioner relegated to Clause 6.5**

HEADNOTE

A writ disputing the correctness of electricity bills is not entertained on the merits where Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 supplies an alternative remedy; the petition is disposed of with liberty to avail that remedy, if so advised.

FACTUAL SUMMARY

M/S Super Texcones filed a writ petition in the Allahabad High Court disputing the correctness of various electricity bills issued by the respondent Electricity Department. On 9 April 2024 the Division Bench permitted service on the panel lawyer for respondent Nos. 3 and 4 and listed the matter as fresh. On 19 April 2024, counsel for the Electricity Department submitted that a billing-correctness dispute lay under the alternative remedy in the Supply Code. Counsel for respondent Nos. 2 and 3 was present.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-correctness dispute; alternative remedy

HOLDING

Where the petitioner disputes the correctness of electricity bills, Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is the alternative remedy, and the writ petition is disposed of with liberty to avail that remedy, if so advised. ¶ 2,4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ disputing the correctness of electricity bills is not entertained on the merits where Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 supplies an alternative remedy; the petition is disposed of with liberty to avail that remedy, if so advised. ¶ 2,4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS ON MERITS

The Court did not examine the bills; it relegated the petitioner to Clause 6.5. ¶ 1,4